ORDINANCE #372

AN ORDINANCE AMENDING ORDINANCE #359 OF THE CITY OF Rector TO PROVIDE A NEW DEFINITION FOR MOBILE HOMES, TO PROVIDE A NEW DEFINITION FOR MANUFACTURED HOMES AND TO PERMIT THEIR USE IN A ZONE DESIGNATED TO HIGH DENSITY RESIDENTIAL (R-2), TO PROVIDE CERTAIN EXTERIOR APPEARANCE STANDARDS FOR MANUFACTURED HOMES, AND TO DEFINE THE MANUFACTURED HOUSING CONSTRUCTION AND SAFETY STANDARD CODE, AND FOR OTHER PURPOSES AND DECLARING AN EMERGENCY.

WHEREAS, it is necessary for the City of Rector to permit manufactured housing to be placed or erected on individual house lots in certain locations where single family dwellings as mandated by the 111th Legislature ~~s~~passing of public law, Chapter 424, and to require such manufactured homes to have a certain exterior appearance standards and to redesign the definition of a reltated problem of mobile homes and to define the manufactured housing construction and safety standard code as applicable to the subject of this Ordinance.

THEREFORE, IT IS HEREBY ORDAINED BY THE CITY COUNCIL OF THE CITY OF Rector, ARKANSAS:

SECTION 2

DEFINITIONS

Article 2-1 Definitions

B. Certain words and phrases shall, for the purpose of this Ordinance, have the following definitions:

Manufactured Home means a dwelling unit fabricated on or after June 15, 1976, in an offsite manufacturing facility for installation or assembly at the building site, bearing a seal certifying that it is built in compliance with the federal Manufactured Housing Construction and Safety Standards Code.

Mobile Home menas a transportable structure having an undercarriage of one or more axles and wheels, a hitch mechanism and designed to remain capable of being towed on the highway. Merely placing such mobile home on a permanent foundation does not alter its character so as to make it a manufactured home for the purpose of this Ordinance.

Manufactured Housing Construction and Safety Standards Code means Title VI of the 1974 Housing and Community Development Act (42 U.S.C. 540) et sequentis), as amended (previously known as the federal Mobile Home Construction and Safety Act), rules and regulations adopted thereunder (including information supplied by the home manufacturer, which has been stamped and approved by a Design Approval Primary Inspection Agency, an agent of the U.S. Department of Housing and Urban Development pursuant to HUD rules), which became effective for mobile/manufactured home construction on June 15, 1976.

C. Exterior Appearance Standards for Manufactured Homes.

Manufactured homes shall be compatible and similar in appearance with site-constructed residences, in that they shall:

(1) Be at least 14 feet in width and have more than seven hundred fifty (750) square feet of occupied space;

(2) Be placed onto a permanent foundation which will transfer loads from the structure to the earth at a depth below the established frost line without exceeding the the safe bearing capacity of the supporting soil,

(3) Set onto an excavated area, with permanet perimeter enclosure, foundations, footings and crawl space or basement walls constructed. The space between the floor joists of the home and the excavated underfloor grade shall be completely enclosed with the permanent perimeter enclosure (except for required openings);

(4) Be anchored to the ground, to the manufacturer's specifications;

(5) Have wheels, axles and hitch mechanisms removed;

(6) Have utilities connected, in accordance with applicable City codes or manufacturer's specifications, whichever is more restrictive;

(7) Have siding material of a type customarily used on site-constructed residences;

(8) Have pitched roofs and roofing material of a type customarily used on site-constructed residences;

(9) Have an open or enclosed, convered parking structure which is compatible with other housing in immediate area. All parking surfaces shall be hard-surfaced. There shall be sufficient off-street parking for two automobiles.

SECTION 5

ZONING DISTRICT REGULATIONS

Article 5-3 High Density Residential (R2)

The purpose of this district is to maintain a residential environment while permitting a wide variety of dwelling types.

A. Permitted Uses.

11. Manufactured Homes. (Certificate of Zoning Compliance and Foundation permit required.)

SECTION 7

ENFORCEMENT

Article 7-2 Building permit

B. Certificate of Zoning Compliance Permit required for Manufactured Homes prior to the location, relocation or establishment of any manufactured home outside of a mobile home park, the homeowner or authorized representative shall secure a Certificate of Zoning Compliance and Foundation Permit, which states that the building and its location conform with the Zoning Ordinance. Each application for a Certificate of Compliance and Foundation Permit shall be accompanied by:

(a) those plot plans as reuqired for all dwelling units, but which at a minimum include elevations or photographs of all sides of the home, exterial dimen-

sions, roof materials, foundation siding or perimeter retaining wall treatment, foundation construction and materials, exterior finishes and the like.

(b) health department approval for any sewage disposal or water supply, where applicable.

(c) Planned Unit Development (P.U.D.) or subdivision approval, where applicable.

(d) A copy of the approved manufacturer's instructions, which will be used for installation purposes, where applicable; and

(e) such other information, as may be required by the Enforcement Officer for proper enforcement of this Ordinance.

C. APPEALS. Whenever the Enforcement Officer shall refuse to approve the mode or manner of construction in the erection or alteration of a manufactured home, or when it is claimed that the provisions of this Ordinance do not apply, the owner of such manufactured homr or his duly authorized agent may appeal from the decision of the Enforcement Officer to the Board of Adjustment in accordance with Art. 8 of the Rector Zoning Ordinance.

EMERGENCY CLAUSE

The cause of immediate need to provide new definitions and permitted uses for manufactured homes in this City and to redefine needed areas of the present zoning code, an Emergency is declared to exist and this Ordinance shall be in full force and effect as of the date of its passage and first publication.

PASSED AND APPROVED this 14th day of May, 1985.

CITY OF RECTOR

BY: Ernest Bray
Mayor

ATTEST:
Dorene Gordon
City Clerk-Treasurer

S E A L